



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

April 12, 2023

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202106608 (Incident Date: October 13, 2021) regarding Sergeant Patrick Chilton, Tax No. 938221 (DADS No. 2022-27693)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that the actions of Sergeant Chilton do not warrant discipline. Sergeant Chilton responded to a dispute inside of a shelter facility where an individual was denied sleeping accommodations due to missing mandatory curfew. Sergeant Chilton spent a significant amount of time speaking with the individual in an attempt to resolve the disagreement over sleeping accommodations. However, as the time passed, the individual grew more and more agitated and ultimately refused to leave the shelter or to abide by the instructions of the shelter's manager.

Subsequently, Sergeant Chilton removed his conducted-electrical weapon (CEW) from its holster and pointed the CEW's laser dot at the uncooperative individual. Such laser warning is a permissible compliance technique. Uniformed members of the service, including Sergeant Chilton, are trained in employing this technique in order to achieve voluntary compliance.

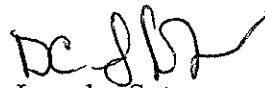
Consistent with his Department training, Sergeant Chilton issued a verbal warning and then employed a laser warning technique in order to ensure that the entrenched and agitated subject did not escalate the encounter. The use of the laser warning enabled the individual to be taken into custody without incident and without injuries to himself or others, including uniformed members of the service.

It must be noted that Sergeant Chilton's Body-Worn Camera recorded the interaction between him and the individual. The recorded video footage shows that throughout his interaction with the individual, Sergeant Chilton exhibited utmost courtesy toward the individual. The use of the laser warning was not employed maliciously or in order to coerce or intimidate the individual; rather, the warning was carried out in accordance with existing Department training and only in order to achieve voluntary compliance and prevent injuries.

Furthermore, members of the Department's Tactics and Training Unit reviewed the Body-Worn Camera footage of the interaction between Sergeant Chilton and the uncooperative individual. These members determined that, based on the circumstances, Sergeant Chilton's actions were wholly appropriate and within the Department's training guidelines.

Therefore, based on the foregoing, Sergeant Patrick Chilton will receive no disciplinary action.

Yours truly,

A handwritten signature in black ink, appearing to read 'DC Soto', with a stylized flourish at the end.

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office